



Stornoway Trust Order Confirmation Act 1975

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ELIZABETH II



1975 CHAPTER viii

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
Stornoway Trust. [22nd May 1975]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Stornoway Trust Order Short title.
Confirmation Act 1975.

SCHEDULE

STORNOWAY TRUST

Provisional Order to make provision for the amalgamation of the Stornoway Trust and the Lews Castle Trust to form one trust; to incorporate the trustees of the said trust; to make provision for the vesting of the trust property in the corporate body; to make provision with respect to the election of trustees; to amend the Stornoway Deed of Trust; and for other purposes.

Whereas by a Deed of Trust dated the 12th November, 1923, and registered in the Books of the Lords of Council and Session on the 21st January, 1924, as amended by a Scheme approved by a Decree of the Lords of Council and Session on the 7th January, 1928, and extracted on the 12th June, 1928, the Stornoway Trust was constituted as follows, namely:—

The Provost of the Burgh of Stornoway, the Magistrates of the said Burgh (hereinafter referred to as “the ex officio trustees”), two Councillors of the said Burgh and five persons being persons holding lands in the area in the Parish of Stornoway belonging to the Stornoway Trust:

And whereas the title to the heritable property of the Stornoway Trust is vested in the ex officio trustees:

And whereas by a further Deed of Trust dated 12th November, 1923, and registered in the Books of the Lords of Council and Session on 21st January, 1924, the Lews Castle Trust was constituted subsidiary to the said Stornoway Trust, the trustees being the Provost and Magistrates of the Burgh of Stornoway and their successors in office:

1973 c. 65.

And whereas on the coming into operation of the Local Government (Scotland) Act 1973 the Burgh of Stornoway will cease to exist and by virtue of the provisions of the said Act it will become the duty of the Islands Council of the Western Isles Area to appoint trustees of the Stornoway Trust in the place of the said Provost, Magistrates and Councillors and also a sufficient number of their Councillors to act as trustees of the Lews Castle Trust:

And whereas in order to preserve a close relationship between the trustees of the Stornoway Trust and the trustees of the Lews Castle Trust and the area of the trust estate as hereinafter defined and to ensure continuity in the management and administration of the affairs of the said trusts it is expedient that they should be amalgamated to

form one trust, that the trustees should be persons having an interest in the area of the said trust estate and that such trustees should be incorporated:

And whereas it is expedient that the provisions contained in this Order with respect to the transfer of the property of the said trusts to the trustees incorporated by this Order should be enacted:

And whereas it is expedient that the other provisions of this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936: 1936 c. 52.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1. This Order may be cited as the Stornoway Trust Order 1975. Short title.
2. In this Order unless there is something in the subject or context repugnant to such construction the following words and expressions shall have the meanings hereby assigned to them (that is to say):—
 - “commencement of this Order” means the date of the passing of the Act confirming this Order;
 - “existing trustees” means the trustees appointed and acting under the Scheme;
 - “the Lews Castle Deed of Trust” means the Deed of Trust dated 12th November, 1923, and registered in the Books of Council and Session on the 21st January, 1924, by the Right Honourable Viscount Leverhulme of the Western Isles constituting the Lews Castle Trust;
 - “the Lews Castle Trust Estate” means the whole property held by the trustees presently acting under the Lews Castle Deed of Trust for the purpose of the said Deed of Trust;
 - “the Scheme” means the Scheme approved by a Decree of the Lords of Council and Session on the 7th January, 1928, and extracted on 12th June, 1928, with respect to the Stornoway Deed of Trust;
 - “Stornoway Deed of Trust” means the Deed of Trust dated 12th November, 1923, and registered in the Books of the Lords of Council and Session on the 21st January, 1924, by the Right Honourable Viscount Leverhulme of the Western Isles constituting the Stornoway Trust;
 - “the trust” means the trustees of the Stornoway Trust incorporated in accordance with the provisions of this Order;
 - “the trust estate” means the lands within the area coloured pink on the plan annexed to the Stornoway Deed of Trust.

Confirmation
of Scheme.

3. The Scheme as amended by the provisions of this Order is hereby of new ratified and confirmed.

Incorporation
of trustees.

4.—(1) As from the commencement of this Order the existing and all future trustees shall be and are hereby for all the purposes of the trust incorporated under the name of “The Stornoway Trust”.

(2) The trust shall be a body corporate with perpetual succession and a common seal and with power to purchase, acquire, hold, sell, lease and dispose of lands and other property, heritable and movable, and real and personal, and to sue and be sued and with all other rights, powers and privileges of a body corporate.

Election and
term of office
of trustees.

5.—(1) The power and duty of carrying into effect the provisions of this Order shall from and after the commencement of this Order until the election of trustees under the provisions of this Order be vested in and performed by the existing trustees and thereafter in the trustees as so elected.

(2) As soon as may be after the commencement of this Order and not later than 30th November, 1975, the existing trustees shall hold an election at which five persons shall be elected to serve as trustees in place of the trustees who were trustees ex officio or appointed by Stornoway Town Council; and on the election of the said five persons, the said trustees ex officio or by appointment shall cease to hold office.

(3) Those of the existing trustees who were elected to serve as trustees under the provisions of the Scheme shall continue to hold office as trustees until the second anniversary of the election referred to in the preceding subsection, when their term of office shall cease, and an election shall be held, on a date to be appointed by the trustees, to elect persons to serve as trustees in their place.

(4) Any of the existing trustees shall be eligible to stand for election to the trust on the cessation of his period of office in terms of the preceding provisions of this section.

(5) The term of office of trustees elected under the preceding provisions shall be four years, and upon the expiry of each term, elections shall be held for the election of persons to serve as trustees in accordance with the provisions of the schedule to the Scheme, as amended by this Order.

Transfer of
trust
property.

6. On the commencement of this Order and without further act or deed all the lands, property, estate and securities belonging to and held by the existing trustees or any of them acting under the Scheme shall and without the necessity of any conveyance, transfer, assignation or other instrument be transferred to and vested in the trustees incorporated by the provisions of this Order and shall be held, managed and administered by the said trustees in accordance with the provisions of the Scheme and this Order.

7. On the commencement of this Order and without further act or deed all the lands, property, estate and securities forming the Lews Castle Trust Estate shall, and without the necessity of any conveyance, transfer, assignation or other instrument, be transferred to and vested in the trustees incorporated by the provisions of this Order and shall be held, managed and administered by the said trustees in accordance with the provisions of the Scheme and of this Order.

Transfer of
Lews Castle
Trust Estate.

8. Subject to the provisions of this Order the persons eligible for election as trustees of the trust shall be persons who are of full age and not subject to any legal incapacity and who appear in the current Valuation Roll as owning or occupying property within the area of the trust estate.

Qualification
of trustees.

9. As from the commencement of this Order the Scheme shall have effect subject to the modifications and amendments set out in the Schedule to this Order.

Amendment
of Scheme.

10. The costs, charges and expenses of and incidental to the preparing, obtaining and confirming of this Order or otherwise in relation thereto shall be paid out of such funds as may be determined by the trustees.

Costs of
Order.

SCHEDULE

AMENDMENTS TO THE SCHEME

1. Clause First shall cease to have effect and there shall be substituted the following clause:—

“ First. The trust shall consist of ten trustees elected in accordance with the provisions contained in the First Schedule annexed hereto from among the persons who, being of full age and not subject to any legal incapacity, appear in the current Valuation Roll as owning or occupying property within the area of the trust estate ”.

At the first meeting of the trustees to be held after the commencement of this Order the trustees shall elect from their own number a chairman who shall hold office until his successor has been elected:

Provided that in the event of a casual vacancy occurring in the said office the trustees may elect one of their number to fill the vacancy and the person so elected shall hold office until his successor has been appointed.

2. In Clause Second:—

For the words “ Provost of the said Burgh of Stornoway ” there shall be substituted the word “ chairman ”.

3. Clause Fourth shall cease to have effect and there shall be substituted:—

“ Fourth—(i) A quorum of the trustees shall consist of five.

(ii) A deed to which the trust is a party shall be held to be validly executed on behalf of the trust if it is sealed with the Common Seal of the trust and subscribed on its behalf by two trustees and the Clerk to the trustees, whether attested by witnesses or not.

(iii) The seal of the trust may be affixed to a deed or other document if authority to affix the seal has been given at a properly constituted meeting of the trust or by a Minute signed by all the trustees acting for the time being; and an extract from the Minutes of the trust certified by the Clerk to the trustees shall be conclusive evidence for all purposes that such authority has been given”.

4. The first sentence of Clause Fifth shall cease to have effect.

5. Clause Tenth shall cease to have effect.

6. In Clause Eleventh:—

(i) There shall be added to paragraph 4 the following: “and in particular the trustees may set aside such sum as they think fit as a fund for use from time to time by the Chairman at his discretion to defray the costs and expenses incurred in providing hospitality and entertainment of or on behalf of the trust and the community”.

- (ii) Paragraph 12 shall cease to have effect.
- (iii) There shall be added after paragraph 12 the following paragraph:—

“13. In contributing to a pension scheme for employees of the Trust”.

7. Clause Thirteenth shall cease to have effect.

8. In the First Schedule:—

- (i) For paragraph 1 there shall be substituted the following paragraph:—

“ 1. The clerk to the trustees or any fit person appointed by the trustees (hereinafter referred to as ‘ the returning officer ’) shall be the returning officer ”.

- (ii) For paragraph 2 there shall be substituted:—

“ 2. The persons entitled to vote in any election of a trustee or trustees shall be persons who are of full age and not subject to any legal incapacity and who appear in the current Valuation Roll as owning or occupying property within the area of the trust estate ”.

- (iii) For paragraph 3 there shall be substituted:—

“ 3. The term of office of trustees elected under this schedule shall be four years, and the trustees whose term of office has expired shall be available for re-election ”.

- (iv) In paragraph 4 the words from the word “ trustees ” where it appears for the second time to the end of the paragraph shall be omitted.



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